

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

L L.B., Semester - I

Subject wise marks allotted and corresponding credits

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	LLB-101	Law of Crimes - I (Bhartiya Nyaya Sanhita - 2023)	80	32	20	8	0	0	100	5	1	0	6
02.	LLB-102	Law of Tort Including M.V. Accident & Consumer Protection Law	80	32	20	8	0	0	100	5	1	0	6
03.	LLB-103	Human Rights & International Law	80	32	20	8	0	0	100	5	1	0	6
04.	LLB-104	Law of Contracts -I	80	32	20	8	0	0	100	5	1	0	6
05.	LLB-105	Family Law -I (Hindu Law)	80	32	20	8	0	0	100	5	1	0	6
06.	LLB-106	Land Laws In M.P.	80	32	20	8	0	0	100	5	1	0	6
Total			480	192	120	48	0	0	600	30	6	0	36

L : Lecture

T : Tutorial

P : Practical

BHABHA UNIVERSITY BHOPAL

REGISTRAR
Bhabha University, Bhopal

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Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

LL.B. PART - I SEMESTER - I

PAPER - I LAW OF CRIMES -I (B.N.S.)

Bharatiya Nyaya Sanhita - 2023

Unit - I

Basic Concepts of Criminal Law

1. Concept and Meaning of Crime
2. Distinction Between Crime and Other Wrongs
3. Classification of Crimes
4. Fundamental Elements of Crime
5. Stages of Crime
6. Parties to Crime
7. Inchoate Offences
8. Corporate Criminal Liability
9. Principles of Criminal Liability
10. Definitions, general explanations, and expressions (Section 2-3)

Unit - II

Punishments and General Exceptions

1. Punishments (Section 4-13)
2. General Exceptions (Section 14-33)
3. Right of Private Defence (Section 34-44)

Unit - III

Abetment, Conspiracy, and Offences Against Women and Children

1. Abetment (Sections 45-60)
2. Criminal Conspiracy (Section 61)
3. Attempt (Section 62)
4. Offences Against Women (Section 63-90)
5. Offences Against Children (Sections 91-97)

Unit - IV

Offences Affecting the Human Body, Property, and reputation.

1. Offences Affecting Life (Sections 98-111)
2. Hurt, Grievous Hurt, wrongful restraint, wrongful confinement (Sections 112-125)
3. Criminal Force and Assault (Sections 126-134)
4. Kidnapping, Abduction, Slavery, and Forced Labour (Sections 135-144).
5. Offences Against Property (301-332)
6. Offences relating to documents and property marks (Section 333-348)
7. Offences of criminal intimidation, insult, annoyance, defamation etc. (Section 349-353)

Unit - V

Offences Against the State, Offences relating to public tranquillity, and Other related offences.

12. Offences Against the State (Sections 145-156)
13. Offences relating to army, navy, and air force (Sections 157-166)
14. Offences Relating to Elections (Sections 167-175).
15. Offences relating to coin, currency notes, bank notes, and government stamps. (Section 176-186).
16. Offences Against Public Tranquility (Section 187-195).
17. Offences Relating to Public Servants and Public Justice (Section 196-267).
18. Offences affecting the public health, safety, convenience, decency, and morals. (Section 268-295)
19. Offences relating to religion (Section 296-300)

Suggested readings:

1. Bare Act, Bharatiya Nyaya Sanhita, 2023.
2. Ratanlal & Dhirajlal's Indian Penal Code (Butterworths Wadhwa, Nagpur) (2021)
3. K. D. Gaur, A text Book on the Indian Penal Code (Universal Delhi) (2023).
4. P. S. Achuthan Pillai, Criminal Law (Eastern Book Co.) (2023).
5. B. M. Gandhi, Indian Penal Code (Eastern Book Co.) (2023)
6. S. N. Mishra, Indian Penal Code, Central Law Publication (2020)
7. Prof. Vageshwari Deswal & Adv. Saurabh Kansal, Taxmann's Bharatiya Nyaya Sanhita 2023 (Taxmann) (2024).

L.L.B. PART-I SEMESTER - I
PAPER – II LAW OF TORTS INCLUDING M.V. ACCIDENT & CONSUMER PROTECTION LAW

UNIT - I

Legal concepts of tort, elements of liability (intention, motive, malice, carelessness. Kinds of liabilities, absolute, vicarious, fault, stator general defenses and remedies discharge of actions.

UNIT – II

Negligence as tort wrongs to physical interest, assault, battery may be loss of expectation of life, other kind of bodily harm including harm due to shock.

UNIT – III

Malicious prosecution. Wrongful conferment, wrongs to proprietary interest, conversion, detente, Trespass, occupiers liability of person in control of movables and animal wrongs to personal interest contractual, domestic quasi parental.

UNIT – IV

Consumer protection Act 1986 object, scope, definition consumer protection council, consumer disputes redressed agencies miscellaneous. Defamation including defenses of truth privilege and fair comment, wrongs to other interest (Conspiracy, injuries, falsehood, abuse of legal process)

UNIT – V

Liability, Insurance, Claims of motor vehicles act 1939.

LEADING CASES:-

1. Donogneau Vs Stevenson, 1932 AC 562.
2. Ryland's Vs Fletcher, 1RI Ex 456.
3. State of Rajasthan Vs Mst. Vidyawati, AIR 1962 SC 953.
4. Overseas Tankship (U.K.) Ltd. Vs Morts Deot& Engineering Co. Ltd.(The wagon mund) 1961 385.
5. Municipal Corporation, Delhi VsSubhagwati, AIR 1966 SC 1874.
6. Indian Medical association V. V.P. Shantha, AIR 1996 SC 530.
7. Lucknow Development authority Vs. M.K.Gupta AIR 1994 SC 787.

RECOMMENDED BOOKS:-

1. Ratan Law- Law of Torts
2. G.K.Kapoor- Law of Torts
3. Bangia- Law of Torts
4. M.N.Shukla- Law of Torts

L.L.B. PART-I SEMESTER - I
PAPER – III HUMAN RIGHTS AND INTERNATIONAL LAW

UNIT - I

1. Theoretical foundations of human rights & international Law.
 - 1.1 Basic principles: Sovereign equality of states non- intervention non use of force international co-operation- peaceful settlement of disputes.
 - 1.2 Individuals as subjects of international law.
 - 1.3 State jurisdiction on terrorism hijacking, narcotics, war crimes and crimes against peace.
 - 1.4 Treatment of aliens.

UNIT - II

2. Historical development of concepts of human rights.
 - 2.1 Human rights in Indian tradition: ancient, medieval and
 - 2.2 Modern. Human rights in western tradition.
 - 2.2.1 Concept of natural law. 2.2.2 Concept of natural rights.
- 2.3 Human rights in legal tradition: International law and National law

UNIT - III

3. UN and Human rights.
 - 3.1 Universal Declaration of human rights (1948) individual and group rights.
 - 3.2 Covenant on political and civil rights (1966).
 - 3.3 Covenant on economic, social and cultural rights (1966).
 - 3.4 ILO and other conventions and protocols dealing with human rights.
 - 3.5 Disarmament threat to human rights. 3.6 International HR commission.
 - 3.7 Mandates of States. 3.8 Rights to development.

UNIT - IV

4. Role of Regional organizations. 4.1 European Convention on Human Rights.
- 4.2 American Convention on Human Rights. 4.3 African Convention on human rights. 4.4 SAARC.

UNIT - V

5. Protection agencies and mechanisms. 5.1 International commission of human rights.
 - 5.1.1 Amnesty international. 5.1.2 Non- Government organizations (NGOs)
- 5.2 European commission on human rights /court of human rights. 5.3 U.N. Division of human rights.
- 5.4 International labour organization. 5.5 UNESCO. 5.6 UNICEF.

RECOMMENDED BOOKS:-

1. S.K.Avesti and R.P. Kataria law relating to human rights, Chh IV, V, VII, XIV, XXIX, and XXXIX 2000) orient. New delhi.
2. S.K. Varma, Public International Law (1998) PHI, New Delhi.
3. Peter J. Van Krieken(ed.) The Exclusion on Clause(1999), Kluwer.
4. Human Rights watch women's rights project, the human rights watch global report on women's human rights (2000) oxford.
5. Ermacora. Nowak and Tretter International Human Rights (1993). Sweet & Maxwell
6. Wallace, International Human Rights : Text & Materials (1996), Sweet & Maxwell
7. Muntarbhorn, The status of Refugees in Asia (1992), Oxford
8. Human Rights and Global Diversity (2001) Frank Cass, London
9. Nirmal C.J. (ed.) Human Rights in India (2000) Oxford.
10. Nirmal B.C. The Right to self determination in International Law (1995), Deep & Deep.
11. P.R. Gandhi International Human Rights Documents (1999) Universal, Delhi.

L.L.B. PART-I SEMESTER - I
PAPER – IV LAW OF CONTRACT – I

UNIT - I

1. History and nature of contractual obligations.
2. Agreement and contract: definitions, elements and kinds of contract.
3. Proposal and acceptance, 4. Consideration.

UNIT - II

Capacity to contract

1. Free consent. 2. Undue Influence. 3. Misrepresentation. 4. Fraud.
5. Mistake. 6. Unlawful considerations and objects. 7. Fraudulent.

UNIT - III

1. Injurious to person or property. 2. Immoral. 3. Against Public policy.
4. Void and void able agreements. 5. Contract without consideration.
6. Agreement in restraint of marriage. 7. Wagering contract and its exception.

UNIT - IV

1. Contractual obligation- remedies.
2. Damages, remoteness of damages, ascertainment of damages.
3. Government contracts.

UNIT - V

Specific Relief Act

1. Specific performance of contract.
2. Contract that can be specifically enforced & that cant be enforced.
3. Persons against whom specific enforcement can be ordered.
4. Rescission and cancellation. 5. Injunction, temporary, perpetual.
6. Declaratory orders. 7. Discretion and powers of court.

RECOMMENDED BOOKS:-

1. Beasten(ed.) Anson's Law of Contract(27 ed. 1998)
2. P.S. Atiyya, Introduction to the law of contract1992 reprint (Claredon law Series).
3. Avtarsingh, Law of contract (2000) Eastwrn, Lucknow.
4. G.C. Cheshire, and H.S.Fifoot and M.P.Furmston, Law of Contract (1992) ELBS with butterworths.
5. M.Krishnan Nair, Law of Contract (1998).
6. G.H. Trelltet, Law of Contracts, Sweet & Maxwell (1997 reprint)
7. R.K. Abhichandani, (ed.) Pollock & Mulla on the Indian Contract and the Specific Relief Act (1999) Tripathi
8. Banerjee S.C. Law of Specific Relief (1998) Universal.
9. Anson, Law of Contract (1998) Universal.
10. Dutt on Contract (2000), Universal
11. Anand & Aiyer, Law of Specific Relief (1999), Universal.

L.L.B. PART-I SEMESTER - I
PAPER – V FAMILY LAW-I (HINDU LAW)

UNIT - I

1. Nature of Hindu law. 2. Hinduism, origin and development, definitions.
2. School and Sources.
- 3.

UNIT - II

1. Marriage. 2. Kinds, nullity of marriage. 3. Hindu marriage Act 1955
4. Special marriage Act 1954. 5. Divorce. 6. Judicial separation, Restitution of conjugal rights.
7. Group for matrimonial remedies.

UNIT - III

1. Joint family. 2. Coparcenaries, property under mitakshara and Dayabhag.
3. Partition and Re- union, women estate, stridhan.

UNIT - IV

1. Gifts, wills. 2. Hindu adoption and maintenance Act 1956.

UNIT - V

1. General rules of succession. 2. Disqualification relating to succession.
3. Hindu Succession Act 1956. 4. Religious Endowment.

RECOMMENDED BOOKS:-

1. Paras Diwan, Law of Intestate and Testamentary Succession (1998), universal.
2. Basu, N.D. Law of Succession (2000) universal.
3. Kusem, Marriage and Divorce law manual (2000) universal.
4. Machanda. S.C. Law and Practice of Divorce in India (2000) Universal
5. P.V. Kane, History of Dharmasastra Vol. 2 pt. 1 at 624-632 (1974)
6. Kuppaswami (ed.) Mayne's Hindu Law and Usage Ch. 4 (1986)
7. B. Sivaramaya, Inequalities and the law, (1985)
8. K.C. Daiya, "Population control through family planning in India, "Indian Journal of Legal Studies, 85 (1979)
9. J.D.M. Derrett, Hindu Law : Past and Present
10. J.D.M. Derrett, Death of Marriage Law
11. A.A.A. Fyze outline of Muhammadan Law, (1998)
12. Alladi Kuppaswami, (ed.) Mayne's Hindu Law and Usage, (1970)
13. Paras Diwan, Hindu Law (1985)
14. S.T. Desai (ed.) Mulla's Principal of Hindu Law, (1998) – Butterworths – India
15. Paras Diwan, Family Law: Law of Marriage and Divorce in India (1984)
16. A.M. Bhattachargee, Muslim Law and the Constitution (1994) Eastern Law house Calcutta
17. Paras Diwan, Law of Adoption, Ministry, Guardianship and Custody (2000), Universal.

L.L.B. PART-I SEMESTER - I
PAPER – VI LAND LAWS IN M.P.

STATUTES IN COURSE:-

1. M.P. land revenue code 1959.
2. The ceilings on agricultural act 190.
3. M.P. Accommodation control Act, 1961.

UNIT – I

M.P. land revenue code 1959. Object and reasons and basic features of enacting Madhya Pradesh land revenue code, 1959. Definitions board of revenue, revenue officers and their classes & powers. Procedure of revenue officer, revenue courts.

UNIT - II

Appeal, revision & review, land & land revenue, revenue survey & settlement in non urban areas, assessment & re- assessment of land in urban areas, land records, boundaries & boundary marks, survey marks, realization of land revenue.

UNIT - III

Tenure holders, govt. lessee & service land, occupancy tenant, allusion & service land, consolidation of holding, village officers, rights in abadi & unoccupied & its procedure.

UNIT - IV

The M.P. ceiling on agricultural holding act 1960, definitions section 2, exemptions & restriction on transfer of land (sec. 3 to 5). Fixing of ceiling area; determination of surplus land and acquisition thereof (section 6-16). Payment of compensation (sec. 16-21). In- cumbrances on surplus land (sec. 22- 34). Disposal of surplus land (sec. 35- 37). Offences & penalties (sec. 37- AC- 37.8). Miscellaneous (sec. 38-50).

UNIT - V

M.P. accommodation control Act, 1961. Definitions, provisions regarding rent. Control of eviction of tenants. Eviction of tenants on grounds of "Bonafide" requirement. Deposit of rent, appointment of rent controlling authorities, their powers, functions and appeals. Provisions regarding special obligations of land lords and penalties.

RECOMMENDED BOOKS:-

1. H.N. Dwivedi- M.P. land revenue code.
2. R.D. Jain- M.P. land revenue code.
3. H.N. Dwivedi M.P. Bhu Rajaswa Sanhita (Hindi Edn.)
4. R.D. Jain मप्र भू-राजस्व संहिता (हिन्दी)
5. Shivdayal Shrivastava मप्र भू-विधि